METHODS OF TRANSFER · 1

Warranty Deed

ANSWER · 1

A deed in which the grantor makes formal guarantees (covenants of title) about the property's title, promising to defend the grantee against title claims — including those arising before the grantor owned the property.

METHODS OF TRANSFER · 2

Quitclaim Deed

ANSWER · 2

A deed that conveys whatever interest the grantor has (if any), with no warranties or guarantees about the quality of title — often used to clear a title cloud or transfer between family members.

METHODS OF TRANSFER · 3

Deed of Trust

ANSWER · 3

Colorado's primary security instrument for real estate loans (used instead of a mortgage). Involves three parties — borrower (trustor), lender (beneficiary), and a public trustee — who holds legal title as security until the debt is paid.

METHODS OF TRANSFER · 4

Foreclosure

ANSWER · 4

The legal process by which a lender or lienholder forces the sale of property to satisfy an unpaid debt after default. In Colorado, deed of trust foreclosures are typically handled through the county Public Trustee's office.

METHODS OF TRANSFER · 5

Probate

ANSWER · 5

The court-supervised process of administering a deceased person's estate — validating a will (if any) and distributing assets, including real property, to heirs or beneficiaries. Under Colorado's Uniform Probate Code, it can proceed as informal or formal proceedings.

METHODS OF TRANSFER · 6

Power of Attorney (POA) in a Conveyance

ANSWER · 6

A document authorizing someone (the attorney-in-fact) to sign documents, including deeds, on another's behalf. For title insurance purposes, the attorney-in-fact's authority to convey real property should be evidenced/recorded in the chain of title.

METHODS OF TRANSFER · 7

Acknowledgment

ANSWER · 7

A notary's certification that the person signing a document appeared before them and confirmed they signed it voluntarily — required for most deeds to be recordable.

METHODS OF TRANSFER · 8

Requirements to Record a Deed in Colorado

ANSWER · 8

Generally a deed must be signed and acknowledged (notarized) and contain a legal description and the grantee's mailing address. Colorado does NOT require witnesses or a seal on a deed.

METHODS OF TRANSFER · 9 EXAM-STYLE

The process by which a deed of trust or mortgage is enforced against real property is called:

ANSWER · 9

Foreclosure

Enforce a mortgage/deed of trust = FORECLOSURE. Unpaid property taxes = TAX SALE. Name spelled differently but sounds the same = IDEM SONANS.

Colorado deed-of-trust foreclosures are typically administered through the county Public Trustee. Note the contrast with a tax sale under the treasurer's-deed process (see the treasurer's deed question elsewhere in the quizzes).

METHODS OF TRANSFER · 10 EXAM-STYLE

After a Colorado tax lien sale, approximately how long must pass before a lawful holder may pursue a treasurer's deed?

ANSWER · 10

3 years

Tax lien sale → Treasurer's deed → think 3 YEARS.

SB26-144 (2026); the statutory deed form also states that more than three years have elapsed since the tax lien sale.

METHODS OF TRANSFER · 11 EXAM-STYLE

Which of the following is recorded in the county clerk and recorder's office?

A. A bill of sale
B. A deed of trust
C. The HUD/closing settlement statement
D. The real property transfer declaration

ANSWER · 11

A deed of trust

Recorded = documents affecting title to REAL property. TD-1000 → assessor, not the recorder. Settlement statement → nobody, it just stays in the file.

Colorado recording statutes, C.R.S. §38-35-109; TD-1000 filed with the assessor under C.R.S. §39-14-102.

METHODS OF TRANSFER · 12 EXAM-STYLE

The legal proceeding by which title to real property is transferred upon the death of the owner is:

ANSWER · 12

Probate

Death → PROBATE. Default → FORECLOSURE. Possession over time → ADVERSE POSSESSION. Government taking → CONDEMNATION.

Colorado's Uniform Probate Code allows either informal or formal proceedings.